

Wetland Information

FOR PROPERTY OWNERS, REALTORS, AND POTENTIAL BUYERS



Due diligence for property transactions should include identification of federal, state, and local regulated features, including wetlands. Wetlands can be found in forests, shorelines, or open fields. Wetlands are often difficult to identify and do not necessarily contain visible water. For example, the picture above is of a forested wetland in summer that is dry on the surface.

Wetlands are a valuable habitat type that are protected by state and federal laws, requiring a Michigan Department of Environment, Great Lakes, and Energy (EGLE) permit for any excavation, filling, construction, drainage of surface water, or maintained use.

Michigan Wetlands Protection Program information is available at Michigan.gov/Wetlands.

This fact sheet answers the following questions:

How do I know if there might be wetland on the property?

What are some important questions to ask during a property transaction?

What resources are available to gather more information?

What services does EGLE provide to help?



MICHIGAN DEPARTMENT OF
ENVIRONMENT, GREAT LAKES, AND ENERGY

EGLE – Wetlands Protection Program website: Michigan.gov/Wetlands

Permitting Information website: Michigan.gov/JointPermit

Water Resources Division website: Michigan.gov/WRD

How do I know if there might be wetland on the property?

Here are some clues that wetland might be present:

- The ground is soggy or has standing water, even for just part of the year.
- The soils are black or peaty.
- The property is lower than surrounding land.
- The land is flat without any grade changes.
- The trees are tipped over due to shallow roots.
- The property is near a pond, lake or stream.
- The property failed a perc test or an engineered septic system is required.
- The property is tax reverted.

What are some important questions to ask during a property transaction?

Does information already exist for this property regarding wetlands, such as:

- Are there wetland reports or delineations, or EGLE letters, permits, or denials for this property? A search of Site Map Explorer in the EGLE database **MiEnviro** may help.
- Has a perc-test been done? If so, what were the results?
- Information from owners or neighbors about standing water, flooding, drainage, muddy spots, etc.

What resources are available to gather more information?

EGLE offers information on our websites to help get you started including:

- Maps of potential wetland areas on the **Wetlands Map Viewer**. This is a good place to start to get an idea what might be on the property. This map does not identify actual wetland, boundaries, or the need for a permit, so an on-site visit by a wetland professional is needed.
- A list of **Private Consultants** that you may hire to identify presence of wetlands and if they are regulated.
- **EGLE Staff Contacts** - Look for the Land/Water Permitting Staff Map. Staff for your County may have knowledge of the property and/or area, but cannot tell you for sure if wetland is present without a site visit.

What services does EGLE provide to help?

The following EGLE services are available and detailed on the Wetlands Protection Program website:

- **Pre-Application Meeting** is an official request to meet with EGLE staff to discuss a project and determine if a permit will be necessary.
- **Wetland Identification Program** offers wetland delineation services that includes a site visit to identify wetland boundaries and regulatory status.



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